

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ISMARA ZUGUEY MENDOZA AMEZCUA,

Petitioner

VS.

EMMANUEL ROBERTO MENDOZA

GONZALEZ,

Respondent

) Case Number: FDI-22-797316

) Hearing Date: September 24, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
CHILD SUPPORT, IN THE ALTERNATIVE SET ASIDE DEFAULT JUDGMENT PER CCP 473.5

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

**The parties are ordered to appear. The parties may appear in person in Department 403 or
remotely by Zoom video. If a party chooses to appear by video, that party must abide by the
Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.**

A. Procedural History

- 1) The parties are Petitioner Ismara Amezcua (Mother) and Respondent Emmanuel Gonzalez (Father). They share one minor child named Yaretzi Mendoza (08/16/20).
- 2) On May 15, 2026, Father filed a Request for Order in which he seeks the following orders:
 - a. Set Aside Default Judgment entered on 04/07/25; or, in the alternative
 - b. Modification of Child Custody;
 - c. Modification of Visitation; and
 - d. Modification of Child Support (DCSS is involved in this action).
- 3) On May 15, 2026, Father filed an Income and Expense Declaration.

1 4) On June 18, 2026, Mother filed a Responsive Declaration in which she is asking this Court to
2 deny all of the relief requested by Father.

3 5) On June 12, 2026, a Declaration was filed by Process Server, Wilfredo Mendez, who has declared
4 under penalty of perjury that he served Father in Court after a hearing conducted on January 12,
5 2023.

6 6) On August 11, 2026, the Court continued the matter to September 24, 2026 to address child
7 custody and visitation issues. The Court gave Father an opportunity to provide the Court and
8 counsel for Mother with any documents showing a change in circumstances, including
9 certification of completing a 52-week Batterer's Intervention Program.
10

11 **B. Findings and Order**

12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child(ren) is the United States.

16 **2) Appearances required.**
17
18
19
20
21
22
23
24
25
26
27
28
29